

23BBCV01209 23BBCV01209

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-17

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Case Number: 23BBCV01209 Hearing Date: July 17, 2026 Dept: U

Hon. Lee S. Arian, Dept B

MOTIONS FOR VACATUR and RECONSIDERATION

Hearing Date: 07/10/2026

CASE NO./NAME: 23BBCV01209 Unite Welding

Enterprises, Inc. v. Dillon Construction Inc., et al.

Moving Party: Defendants,

Dillon Construction Inc., et al

Responding Party: Plaintiff, Unite Welding Enterprises,

Inc.

Notice: Sufficient

Ruling: GRANT

BACKGROUND

This is a breach of contract case. On

August 2, 2023, default was entered against Dillon Construction, Inc. ("DCI").

On May 13, 2026, default judgment was entered against DCI. On May 27, 2026,

Defendants DCI, Edward Dean Roane, Christopher David Dillon, and Dillon Roane,

a Joint Venture, Inc. (collectively "Defendants") filed the instant motions for

vacatur of the default judgment against Dillon Construction, Inc and reconsideration

of the order setting a mediation date deadline.

DISCUSSION

Defendants/Cross-Complainants

move the Court for the following:

(1)

An order

reconsidering, modifying, vacating, and/or continuing the Court's Post Mediation Status Conference currently scheduled for July 21, 2026;

(2)

An order vacating,

correcting, clarifying, and/or amending the Judgment entered on or about May 13, 2026 to remove DCI from the Judgment and any corresponding Attachment 5a thereto;

(3)

An order

confirming that no default was entered against DCI and that DCI timely appeared and answered Plaintiff's pleadings in this action;

(4)

An order

prohibiting any enforcement activity against DCI arising from the Judgment pending correction of the Court's records; and

(5)

Such other and further relief as this Court deems just and proper.

a.

Vacatur

Defendants

argue that the inclusion of DCI in the May 13, 2026 Default Judgment was the result of a clerical error by this Court and should be corrected independently under Code of Civil Procedure section 473, subdivision (d). In support, Defendants argue that DCI had filed and served answers to the Complaint, First Amended Complaint, and Second Amended Complaint and that the Court had previously

rejected default of DCI based on these answers.[1] In Reply, Defendants more explicitly and persuasively argue that DCI responded to the First Amended Complaint and other amended complaints such that the default to the initial complaint should not be considered in operation.

Code of Civil Procedure section 473, subdivision (d) addresses a motion to vacate a void judgment or order. That section states, "The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc., §473, subd. (d).)

The default entered in 2023 against DCI is not operable given DCI's filing of an answer to an amended complaint. (*Tidwell v. Henrick* (1954) 124 Cal. App. 2d 64). Accordingly, the default judgment including DCI was made in error and the Court hereby vacates it as to DCI pursuant to CCP section 473d.[2]

b. Reconsideration

Defendants' motion for reconsideration is untimely. The order re mediation was made on March 24, 2026, and the motion was not brought until May 27, 2026.

The real problem is that the moving party titled this as a motion for reconsideration. (By so titling the motion and bringing it under CCP 10008, Plaintiff made the motion untimely and also had the motion routed to the judicial officer who set the mediation.) It is more properly titled and considered a motion to continue.

In any event, the Court hereby deems the motion to reconsider a motion to continue. The post-mediation status conference is scheduled for July 21, 2026. Defendants move this Court to continue the current mediation schedule because Defendants have obtained a \$483,000 judgment against Arabo, LLC, Canplan Industries, LLC, and Agassi Halajyan (collectively "Owner Parties"), undertaken asset investigations relating to judgment debtors, identified California-based assets and real property, scheduled formal enforcement proceedings to commence on June

1, 2026, and identified a pathway toward substantial recovery that may materially affect or substantially resolve Plaintiff's underlying claims. (Mot., p. 12, In. 12-19.) In opposition, Plaintiff argues that waiting on Defendants to collect their judgment from the Owner Parties will have no effect on the mediation between Plaintiff and Defendants. (Opp., p. 6, In. 7-11.) The Court finds that good cause exists to continue the post-mediation status conference because Defendants have undertaken meaningful collection efforts. Accordingly, the post-mediation status conference is continued to September 28, 2026, at 8:30 a.m., in Dept. B at the Burbank Courthouse.

The Court further hereby grants DCI's request to prohibit enforcement activity against DCI based on its decision to vacate/set aside the default judgment against DCI. No such activity can take place until a judgment is entered against DCI.

Hon. Lee S. Arian

Judge of the Superior Court

[1]

DCI's argument that the Court rejected the default judgment previously because of the answers is incorrect. The notice of rejection, dated August 2, 2023, (confusingly, the same day that another request for default against DCI was entered) occurred prior to any of the answers and states "Item 1(b) does not match the Complaint" as the reason for rejection.

[2]

Plaintiff

argues that a motion under Section 473 is untimely. However, the six-month time limit only applies to motions filed under section 473, subdivision (b). There is no time restriction for filing a motion under section 473, subdivision (d).